

Suresh Prajapati v. State of U.P. And 3 Others

High Court of Judicature at Allahabad · Division Bench · 23 April 2025 · 2025:AHC:63192-DB · WRIT - C No. 12222 of 2025 · **Writ disposed of; petitioner directed to file objection under Clause 6.5, to be decided within six weeks.**

HEADNOTE

A writ petitioner raising an electricity grievance is to file an application/objection under Clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005. If filed within two weeks, the concerned authority shall decide it within six weeks after hearing the petitioner. The High Court did not examine the merits.

FACTUAL SUMMARY

Suresh Prajapati filed Writ-C No. 12222 of 2025 in the Allahabad High Court against the State of Uttar Pradesh and three others. Counsel for the petitioner and for the respondents, including the standing counsel, were heard. The one-page order does not record the nature of the supply or billing grievance, any assessment, or the relief originally sought. After hearing, the Division Bench did not decide the dispute on merits and instead channelled the petitioner to the Supply Code objection route.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing objection

HOLDING

The writ petition was disposed of with a direction that the petitioner file an application/objection under Clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005. If such application/objection is filed within two weeks, the concerned authority shall decide it within six weeks of filing, after granting the petitioner an opportunity of hearing. The Court did not grant or refuse relief on the merits of the electricity dispute. ¶ 2-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PETITIONER'S ELECTRICITY GRIEVANCE

The Court did not examine the underlying supply or billing dispute and relegated the petitioner to Clause 6.5. ¶ 2-4